

Calendar Line 3**Case Name:** *Christian Humanitarian Aid, Inc. v. AM Star Construction, Inc. et al.***Case No.:** 22CV396170

This is a motion by plaintiff Christian Humanitarian Aid, Inc. (“CHA”) to “enforce” the court’s prior orders (dated August 29, 2024 and September 5, 2024) imposing monetary sanctions on defendant Michael Achkar, as well as a request for further monetary sanctions in the amount of \$2,100.00. In response, Achkar states that the previously ordered amounts, totaling \$5,326.25, have now been paid, mooted any need for enforcement. In addition, Achkar contends that the court has no authority to award additional monetary sanctions for a failure to comply with a previous sanctions order.

Although the court disagrees with Achkar’s unduly narrow view of its authority, as well as his unduly narrow view of what constitutes an abuse of the discovery process, the court concludes that further monetary sanctions are unnecessary here, given that Achkar has now paid the \$5,326.25, albeit belatedly. Although CHA undoubtedly incurred additional costs in bringing the present motion, the court finds Achkar has been sanctioned enough for his prior failure to provide adequate responses to document requests and interrogatories, which was the original basis for sanctions. Moreover, had Achkar continued to fail to pay the previous monetary sanctions, they would simply have had the effect of a money judgment, enforceable by a writ of execution, making this motion somewhat unnecessary. (See *Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615.)

With a jury trial coming up in less than three months, the parties need to move on from their excessive motion practice.

The motion is denied.

- oo0oo -

Calendar Lines 4-5

Case Name: *Eric F. Hartman v. Lynn Dornon Kuehn*

Case No.: 23CV427904

Defendant Lynn Dornon Kuehn brings two motions for sanctions against plaintiff Eric F. Hartman for failure to comply with earlier discovery orders of the court, dated July 25, 2024 and September 10, 2024, which granted Kuehn's motions to compel in part. Kuehn requests terminating, evidentiary, and issue sanctions in each motion. In addition, she requests monetary sanctions of \$5,492.00 for failure to comply with the July 25, 2024 order and \$2,934.59 for failure to comply with the September 10, 2024 order.⁶

As an initial matter, the court observes that there was no reason for these motions to be filed separately (on October 29, 2024 and November 4, 2024), given the inordinate amount of repetition in the papers supporting each motion. These motions could easily have been filed as a single motion, and should have been.

Second, there is absolutely no basis for evidentiary or issue sanctions to be imposed here, much less terminating sanctions. The court did not even order monetary sanctions in connection with the two prior motions, and so for Kuehn to jump straight to non-monetary sanctions in these motions is singularly unreasonable. (See *J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169 [“The discovery statutes thus ‘evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.’ [Citation.] Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.”] [quoting *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604].)

Third, it appears that Hartman did provide supplemental responses to most of the discovery requests at issue in the prior motions, albeit belatedly in some instances. Kuehn's dissatisfaction with the substance of these supplemental responses is not a basis for the imposition of sanctions. Rather, if there is or was some ongoing deficiency in Hartman's responses, Kuehn should have brought a motion to compel *further responses*. To the extent that Kuehn believes that Hartman has not made a complete production of responsive and non-privileged documents (or videos), she should have brought a motion to compel *compliance*. Such motions could have been *accompanied* by a request for sanctions, but instead of bringing such motions, Kuehn has instead focused solely on obtaining sanctions against Hartman, with a primary focus on obtaining terminating sanctions. This is procedurally backwards.

Fourth, although it is somewhat difficult to discern from both sides' discursive and disorganized papers, it appears that there is still a subset of discovery requests to which Hartman has not responded, notwithstanding the court's second order. These are Requests for Production Nos. 31-37. According to Kuehn, as of February 18, 2025, one week before the hearing on this motion, Hartman “has not made any further response to the second set of requests to produce, in violation of this second [o]rder to compel further discovery responses.”

⁶ On its own motion, the court takes judicial notice of the July 25, 2024 and September 10, 2024 orders. (Evid. Code, § 452, subd. (d).)